

APPROVED

By Michael R. O'Donnell at 12:00 pm, Jun 14, 2021

City Contract # _____

MPO Contract # 187461

PROFESSIONAL SERVICES AGREEMENT
for the
East Pershing Boulevard Plan

PREAMBLE

THIS AGREEMENT is made and entered into this ____ day of _____, 2021, by and between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, hereinafter referred to as the "MPO," and Y2 Consultants, hereinafter referred to as "Consultant." The City of Cheyenne is acting as the agent of the MPO for the contract administration and as the MPO's Fiscal Manager in accordance with Contract #6111.

AGREEMENT

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK.

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE.

The work included in this Scope of Work will be completed in accordance with the project schedule attached hereto as Exhibit B, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in the Scope of Work shall be agreed upon in writing between the parties.

3. COMPENSATION.

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the MPO and the MPO agrees to pay Consultant a total amount of Ninety-Four Thousand Thirty-Six Dollars (\$94,036.00), in accordance with the fee schedule provided in Exhibit C, which is attached to this Agreement, incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant's progress, verified by the MPO, in completing the work as described in Exhibits A, B, and C. Final payment shall be made following acceptance of the work by the MPO. Original quality reproductions of all designs, plans, reports, specifications, drawings, and other services rendered by the Consultant shall become the sole property of the MPO and shall be delivered to the MPO, immediately upon their preparation to the extent the MPO has satisfied its payment obligations to the Consultant. A portion of the payment may be held until any claims are resolved.

4. CONSULTANT RESPONSIBILITY.

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors, omissions or other deficiencies arise from the digital data created by *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)*.

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. GIS MAPS AND DIGITAL DATA.

If the Consultant uses any maps, coverages, images, or other digital data created by the CLCCGIS for the project specified in Exhibit A, the Consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

6. GIS DATA LIMITATION AND DISCLAIMED LIABILITY.

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user.

7. COMPLIANCE WITH LAWS.

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

8. DRUG-FREE WORKPLACE.

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

9. INDEMNIFICATION/HOLD HARMLESS.

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses

incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

10. **INSURANCE REQUIREMENTS.**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement;
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement;

- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne and the MPO as **an Additional Insured** by endorsement on its insurance policies, with the exception of workers’ compensation and professional liability insurance and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

- 11. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES. 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
- 12. MPO REPRESENTATIVE.
Prior to commencement of work, the MPO will designate in writing, an MPO Representative who shall make, within the scope of his/her authority, all necessary

decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the MPO Representative.

13. MONTHLY REPORT.

With every monthly billing, Consultant shall provide the MPO Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

14. INDEPENDENT CONSULTANT.

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the MPO or to incur any obligation of any kind on the behalf of the MPO.

15. TAXES.

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by in connection with its operations under this Agreement.

16. APPROVAL OF PLANS.

The MPO's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The MPO's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the MPO's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

17. DEFAULT.

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES.

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the agreement as continuing and require specific performance.

19. TERMINATION BY MPO.

The MPO Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this Agreement in whole or in part at any time, for the MPO's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the MPO Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the MPO will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

20. ADDITIONAL REMEDIES.

In the event the Consultant fails to strictly perform in accordance with this Agreement, the MPO may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

21. GOVERNING LAW, JURISDICTION AND VENUE.

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

22. GOVERNMENTAL IMMUNITY.

The State of Wyoming, the Wyoming Department of Transportation (WYDOT), the City of Cheyenne, and Laramie County, along with their officials and employees, do not waive their governmental or sovereign immunity by entering into this Agreement, and the MPO does not waive governmental immunity, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the agreement, and each specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other state law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental or sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental or sovereign immunity. The State of Wyoming, WYDOT, the City of Cheyenne, Laramie County, and the MPO reserve all immunities and defenses available under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et. seq.*

23. ENVIRONMENTAL POLICY ACTS.

The Consultant agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules, or regulations.

24. HUMAN TRAFFICKING.

As required by 22 U.S.C. § 7104(g) and 2 C.F.R. Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

- a. Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
- b. Procures a commercial sex act during the period of time that the award is in effect;
or
- c. Uses forced labor in the performance of the award or sub-awards under the award.

25. KICKBACKS.

The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, Cheyenne MPO may, at its discretion, terminate this Agreement without liability to Cheyenne MPO, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

26. LIMITATIONS ON LOBBYING ACTIVITIES.

By signing this Agreement, the Consultant certifies and agrees that, in accordance with Public Law 101-121, payments made from a federal grant shall not be utilized by the Consultant or its sub-consultants in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.

27. MONITORING ACTIVITIES.

The Cheyenne MPO shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

28. NON-DISCRIMINATION.

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, the Age Discrimination Act of 1975, and any properly promulgated rules and regulations thereto and shall not discriminate

against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this Agreement.

29. PROFESSIONAL REGISTRATION.

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming.

30. PUBLICITY.

Any publicity given to the program or services provided herein including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Consultant and related to the services and work to be performed under this Agreement, shall identify Cheyenne MPO, WYDOT and/or the Federal Highway Administration as the sponsoring agency and shall not be released without prior written approval of Cheyenne MPO and WYDOT.

31. SUSPENSION AND DEBARMENT.

By signing this Agreement, the Consultant certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and 44 C.F.R. Part 17, or are on the debarred vendors list at www.epls.gov. Further, the Consultant agrees to notify Cheyenne MPO by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Agreement.

32. NO GOVERNMENT OBLIGATION TO THIRD PARTIES.

No Obligation by the Federal Government.

- a. The Consultant acknowledges and agrees that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this Agreement and shall not be subject to any obligations or liabilities to the Consultant, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract.
- b. The Consultant agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by the Federal Transit Administration (FTA). It is further agreed that the clause shall not be modified, except to identify the sub-consultant who will be subject to its provisions.

33. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS.

- a. The Consultant acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801, *et seq.*, and U.S. DOT regulations, "Program Fraud Civil Remedies," 49 C.F.R. Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Consultant certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Consultant further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Consultant to the extent the Federal Government deems appropriate.
- b. The Consultant also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. § 5307, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5307(n)(1) on the Consultant, to the extent the Federal Government deems appropriate.
- c. The Consultant agrees to include the above two clauses in each sub-contract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the sub-consultant who will be subject to the provisions.

34. FEDERAL CHANGES. 49 C.F.R. Part 18

Consultant shall at all times comply with all applicable FTA regulations, policies, procedures, and directives including, without limitation, those listed directly or by reference in the Agreement (Form FTA MA (18) dated October 2011) between consultant and FTA, as they may be amended or promulgated from time to time during the term of this Agreement. Consultant's failure to so comply shall constitute a material breach of this Agreement.

35. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS.
FTA Circular 4220.1F

Applicability: *The incorporation of FTA terms applies to all contracts.*

The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F, are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Consultant shall not perform any act, fail to perform any

act, or refuse to comply with any City of Cheyenne requests which would cause City of Cheyenne to be in violation of the FTA terms and conditions.

36. LOBBYING. 31 U.S.C. § 1352 – 49 C.F.R. Part 19 - 49 C.F.R. Part 20
Byrd Anti-Lobbying Amendment, 31 U.S.C. § 1352, as amended by the Lobbying Disclosure Act of 1995, 2 U.S.C. § 1601, *et seq.* Consultants who apply or bid for an award of \$100,000 or more shall file the certification required by 49 C.F.R. Part 20, “New Restrictions on Lobbying”. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay a person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose the name of any registrant under the Lobbying Disclosure Act of 1995 who has made lobbying contacts on its behalf with non-Federal funds with respect to that Federal contract, grant or award covered by 31 U.S.C. § 1352. Such disclosures are forwarded from tier to tier up to the recipient.
37. ADA ACCESSIBILITY. 42 U.S.C. § 12101, *et seq.*
Applicability: Facilities construction or renovation contracts.
Facilities to be used in public transportation service must comply with 42 U.S.C. § 12101, *et seq.*, and DOT regulations, “Transportation Services for Individuals with Disabilities (ADA),” 49 C.F.R. Part 37; and Joint ATBCB/DOT regulations, “Americans with Disabilities (ADA) Accessibility Specifications for Transportation Vehicles,” 36 C.F.R. Part 1192 and 49 C.F.R. Part 38. Notably, DOT incorporated reference the ATBCB’s “Americans with Disabilities Act Accessibility Guidelines” (ADAAG), revised July 2004, which include accessibility guidelines for buildings and facilities, and are incorporated into Appendix A to 49 C.F.R. Part 37. DOT also added specific provisions to Appendix A modifying the ADAAG, with the result that buildings and facilities must comply with both the ADAAG amendments thereto in Appendix A to 49 C.F.R. Part 37.
38. PRIVACY ACT. 5 U.S.C. § 552
Applicability: The Federal Privacy Act requirements flow down to each third-party Consultant and their contracts at every tier.
The following requirements apply to the Consultant and its employees that administer any system of records on behalf of the Federal Government under any contract:
- a. The Consultant agrees to comply with, and assures the compliance of its employees with, the information restrictions and other applicable requirements of the Privacy Act of 1974, 5 U.S.C. § 552a. Among other things, the Consultant agrees to obtain the express consent of the Federal Government before the Consultant or its employees operate a system of records on behalf of the Federal Government. The Consultant understands that the requirements of the Privacy Act, including the civil and criminal penalties for violations of that Act, apply to those individuals involved, and that failure to comply with the terms of the privacy Act may result in termination of the underlying contract.

- b. The Consultant also agrees to include these requirements in each sub-contract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

39. MISCELLANEOUS TERMS REQUIRED BY WYOMING DEPARTMENT OF TRANSPORTATION.

a. Special Provisions.

- (i) Conflict of Interest. The subrecipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
- (ii) Mandatory Disclosures. The subrecipient must disclose, in a timely manner, in writing to WYDOT all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for noncompliance including suspension or debarment.

b. General Provisions.

- (i) Amendments. Either party may request changes in this Agreement. Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by and between the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
- (ii) Assumption of Risk. The City shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. WYDOT will notify the City of any state or federal determination of noncompliance.
- (iii) Availability of Funds. Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the City, this Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT will notify the City at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT will not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit WYDOT to terminate this Agreement in order to acquire similar services from another party.

- (iv) Notices. All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the address provided under this Agreement, either delivered by hand or certified mail.
- (v) Prior Approval. This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement, and the Wyoming State Auditor shall not draw warrants for payment on this Agreement until this Agreement has been reduced to writing, approved as to form by the Office of the Attorney General, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).
- (vi) Severability. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of this Agreement shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- (vii) Assignment/Agreement Not Used as Collateral. Neither party shall assign nor otherwise transfer any of the rights or delegate any of the duties set forth in this Agreement without the prior written consent of the other party. The City shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.

40. ENTIRETY OF AGREEMENT

This Agreement consisting of 13 pages, and Exhibits A, B, and C consisting of 7, 1, and 1 pages respectively, and submitted proposal with negotiated changes, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof. Any timing extension shall be approved in writing by both parties.

Notwithstanding the foregoing, the MPO Master Agreement (Contract #6111) is hereby incorporated into and made a part of this Agreement. This Agreement and the parties thereto shall be subject to the terms of the MPO Master Agreement, and in the event that the terms of the MPO Master Agreement conflicts with the terms of this Agreement, the terms of the MPO Master Agreement shall control.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

Cheyenne Metropolitan Planning Organization
2101 O'Neil Avenue
Cheyenne, WY 82001

By: _____
Troy Thompson, Chairman
MPO Policy Committee

Date: _____

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

By: _____
Patrick Collins, Mayor

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

Date: _____

Consultant

Y2 Consultants
P.O. Box 2870
180 South Willow St.
Jackson, WY 83001

By: _____

Print Name: _____

Title: _____

Date: _____

Scope of Work per the Cheyenne MPO Request for Proposals, March 25, 2021

CONSULTANT INVOLVEMENT

The consultant will hold meetings as needed with the Project Steering Committee, Stakeholders consisting of but not limited to: City Planning, Public Works and Engineering, City Board of Public Utilities, Laramie County Public Works and Planning, WYDOT, and MPO during the course of the project. The Consultant should conduct meetings at the project kickoff, prior to all public meetings, two to three weeks after all draft submittals and at the conclusion of the project to ensure all concerns from all stakeholders have been addressed satisfactorily. Throughout the project, the selected Consultant shall periodically meet with the MPO, City Departments, County Departments, and WYDOT staff, etc.

Cheyenne MPO, through the GIS Cooperative, will provide the existing mapping data, reports and project information. The consultant will use existing data to the greatest extent possible. The consultant will also prepare such graphics and other maps that may be needed to illustrate the recommendations, and alignments and improvements proposed. The consultant will be responsible for preparing the final recommendations in a map and report format, as well as, electronically.

Effort will be made in the adjacent neighborhoods to obtain public input and will involve advertisement and active solicitation, (See the Public Involvement Section below). Before presentations of the final document to the City Governing Body and Laramie County Board of Commissioners, the consultant will present at meetings with the MPO Technical Committee, Citizen's Advisory Committee, and City and County Planning Commissions. The consultant will be responsible for providing copies/files for review to the MPO and the Steering Committee as needed throughout the project.

The Final Planning document will contain the below disclaimer within the title pages.

"The preparation of this report has been financed in part through grant[s] from the Federal Highway Administration and Federal Transit Administration, U.S. Department of Transportation, under the State Planning and Research Program, Section 505 [or Metropolitan Planning Program, Section 104(f)] of Title 23, U.S. Code. The contents of this report do not necessarily reflect the official views or policy of the U.S. Department of Transportation."

PROJECT OVERVIEW AND TASKS

- Develop a 35% design plan for the reconstruction of East Pershing between U.S. 30 Lincolnway and Christensen Road for all modes.
- The work on this corridor plan will not include a traffic analysis of the U.S. 30 and E. Pershing intersection. However, recommendations pertaining to pedestrian wayfinding and movement within the vicinity of the intersection and throughout the corridor are desired.
- Given the known and projected housing and employment growth on the east side of Cheyenne, this study will determine the appropriate lane configuration and/or traffic control on East Pershing between U.S. 30 and Christensen Road.
- The Cheyenne MPO will collect, process, and make available Peak-Hour Turning Movement Counts at the following locations:
 1. US 30/Lincolnway & Pershing Blvd
 2. Grassland Pkwy & Pershing Blvd
 3. Pierce Ave & Pershing Blvd
 4. Taft Ave/Polk Ave & Pershing Blvd
 5. Hayes Ave & Pershing Blvd

6. Wenandy Ave & Pershing Blvd
 7. McKinley Ave & Pershing Blvd
 8. Whitney Rd & Pershing Blvd
 9. Tate Rd & Pershing Blvd
 10. Fireside Dr & Pershing Blvd
 11. Foster Ave & Pershing Blvd
 12. Huisman Rd & Pershing Blvd
 13. Farthing Rd & Pershing Blvd
 14. Christensen Rd & Pershing Blvd
- The Cheyenne MPO will collect, process, and make available ADT Volumes / Speed / Classifications at the following locations:
 1. Pershing Blvd West of Taft Ave/Polk Ave
 2. Pershing Blvd West of Hayes Ave
 3. Pershing Blvd West of Whitney Rd
 4. Pershing Blvd West of Fireside Dr
 5. Pershing Blvd West of Farthing Rd
 6. Pershing Blvd West of Christensen Rd
 - Cheyenne UDC Article 4: Intersection spacing for a minor arterial is 660' with the distance between signals being 1320'. Review the possibility of consolidating driveways, accesses, etc. which may provide traffic and neighborhood connectivity benefits. (See recommendations for U.S. 30 accesses in the *East U.S. 30/Dell Range Plan*.)
 - Determine the locations of and justifications for possible future traffic control devices.
 - Determine the 25-year typical sections and alignments of East Pershing from U.S. 30 to Christensen, including approaching roadway and access tie-ins.
 - Review existing and future water flow to Dry Creek and determine the appropriate width of the Dry Creek Box Culvert. Consider if additional lanes and space are needed for sidewalks and/or Greenway. If more width is needed, determine how the Dry Creek structure will be widened. Provide probable preliminary design and cost estimate.
 - Determine how many travel lanes are needed between U.S. 30 and Christensen. If lane transitions are needed, detail lengths and locations where they should occur.
 - Develop a master implementation strategy for project prioritization, phasing, and budgeting costs for near-, mid- and long-term needs.
 - Plan and Profile Sheets are required and will be based on known survey data obtained from the MPO.
 - Determine 35% designs for storm water drainage along the East Pershing Corridor.
 - Develop cost estimates.

PUBLIC INVOLVEMENT

Using the updated 2020 MPO *Public Participation Plan*, the consultant will develop a public involvement strategy that will be uniquely tailored to the needs of this project to achieve neighborhood support and consensus between stakeholders and the determination of a recommended and accepted course of action. A minimum of two public open house meetings and various other public outreach techniques will be used to gather feedback and inform the public of the project. Each public meeting should be expected to be both in-person and virtual. Consultants shall design all digital and traditional advertising materials for the project, as well as produce all meeting materials. These materials, along with public engagement results, will be provided to staff for use on the MPO website and other associated social media platforms including Facebook. Consultants will work closely with a project Steering Committee made of technical staff from the City, County, MPO and possible neighborhood representatives. The consultants will meet with them as necessary but no less than every month to coincide with monthly billings during the project. Periodic updates, with necessary presentations, will be provided to the MPO and the Project Management/Steering team. During the plan development the consultant will conduct two presentations to both the MPO Citizens' Advisory Committee and the Technical Committee. During the adoption process, the consultant shall also plan on presentations to the City and County Planning Commissions, the City Public Service Committee and Governing Body, Laramie County Commissioners and the MPO Policy Committee.

DELIVERABLES

The consultant will be responsible for providing material/data for review to MPO/steering committee as needed throughout the project. The consultant will be responsible for providing up to ten (10) hard copies of the preliminary draft report. The consultant will be responsible for providing up to ten (10) hard copies of the final report, maps after its adoption by the Governing Body, Commissioners and MPO Policy Committee, along with electronic copies in PDF format.

Specific deliverables include (but may not be limited to) the following:

1. Advertisement design and electronic copies for public participation efforts that may possibly include postcards, newspaper advertisements, and social media, among others.
2. Displays for staff, steering and/or public meetings including maps, boards, handouts, surveys, and sign-in sheets. These will be available as electronic copies to the MPO to review several days prior to meetings and summaries of surveys, shall be provided promptly upon completion.
3. Summaries of all public meetings and steering committee meetings will be produced within a week of the event.
4. PowerPoint presentations given at meetings, and a text summary of all meetings for the MPO website.
5. Thirty-five percent (preliminary) plan and profiles for the roadway, needed rights of way, utilities, and drainage considerations of E. Pershing from U.S. 30 to Christensen.
6. Cost estimates for preliminary construction, Rights-of-Way acquisitions, and drainage improvements for the project.
7. Documentation of progress shall be included with every invoice.
8. Electronic copies of all documents, images, photos, draft plans, and final plans. If TransCAD or ArcGIS files are produced, then they should be provided to the MPO, as well.

Scope of Work per the Y2 Consultants Proposal, April 23, 2021

Project Approach

Phase 0: Pre-Project: Pre-project coordination gives clear direction to the planning process and helps assure all participants are fully informed, facilitating clear communication and control throughout the study.

Project Kick-Off Meeting: Immediately after Notice to Proceed, Y2 Consultants will meet with the MPO and Steering Committee representatives to clarify project roles and communication protocols, finalize the project schedule, schedule stakeholder agency meetings, receive reference materials, and review other items as needed.

Regular Project Coordination: To control staff time and travel cost, Y2 Consultants will meet with the MPO and Steering Committee members virtually each month using ‘*ZOOM*’ or ‘*Teams*’ platforms. Per the RFP, Y2 will hold meetings at the project kickoff, prior to all public meetings, two to three weeks after all draft submittals and at the conclusion of the project to ensure concerns from all stakeholders have been addressed satisfactorily. Y2 will provide materials and data to the MPO and steering committee for review as needed throughout the project.

Phase I: Research and Planning: The purpose of the research and planning phase is to determine ‘what to do’ (a plan). Completion of the project planning process prior to beginning engineering design serves to prevent expensive “back-to-the-drawing-table” rework. The completed planning phase lets decision makers make fully informed decisions, which in turn gives engineers clear direction on the community’s preferred solution (i.e. what the engineers are to design).

Public Involvement Outreach: Y2 Consultants appreciates the rights of citizens to be informed and offer comment. Y2 will use a multi-media approach to assure all interested parties have meaningful opportunities to comment on proposals. Our planning process incorporates a timely public open house and design charrette prior to selecting a preferred alternative, followed by a second open house to present the proposed design and receive comments. Throughout the study, Y2 will develop and provide content to the MPO to be shared on the MPO’s Facebook page, as well as a project webpage on the MPO’s website, to include advertised events targeted to study area residents. We will also provide traditional public outreach methods, such as press releases at the outset of the project and prior to each public meeting, a dedicated project ‘hotline,’ and a dedicated project E-mail address. Each of these contact methods will be described in press releases.

Prior to each public meeting, Y2 Consultants will attempt to procure a variable message sign (VMS) from an area road construction agency. The sign will be placed alongside Pershing Boulevard to announce the meeting date, time, and location.

Review of Existing Data and Documents: Per the RFP, Y2 will review and reference data, plans, and materials relevant to the study, including but not limited to recent traffic and crash data, traffic projections from the Connect 2045 Travel Demand Model, aerial photography, GIS layers reflecting zoning, land use, City water and sewer, etc. as well as plans and reports relevant to this study, including City of Cheyenne Unified Development Code, PlanCheyenne’s Connect 2045 long range plan, the Cheyenne Metropolitan Area Pedestrian Plan, Safe Routes to School Plan, Cheyenne On-Street Bicycle Plan, and others. Y2 will integrate relevant data and regional plan elements into the East Pershing Boulevard Plan.

Utilities: Cheyenne BOPU has provided water and sewer plans, and Underground Consulting Solutions (UCS) will locate all utilities from US-30 to Christensen Road. This step reduces the potential for proposed alignments to conflict with buried utilities.

Traffic and Safety Review: Y2 Consultants will inspect traffic and crash records to identify crash trends and correctable patterns along the corridor. Y2 staff are experienced with FHWA *Road Safety Audit* procedures, and we will use these review methods to anticipate potential crash conflicts in the existing corridor and make proposed improvements. Y2 Consultants will consider FHWA *Proven Safety Countermeasures* for developing road and intersection geometries and controls.

Traffic Forecast and Capacity Analysis: Traffic capacity is expensive, and overdesign is wasteful. Y2 integrates all available resources for accurate traffic estimation, including MPO roadway link volumes and turn counts, growth trends, PlanCheyenne Connect 2045 model TAZ assumptions and roadway link volume forecasts, and ITE trip generation for specific land uses such as the proposed elementary school. Y2 Consultants recently prepared a traffic forecast for reconstruction of nearby Dildine Elementary School and will use that experience to forecast traffic impacts of the Saddle Ridge 13 subdivision. Y2 traffic experts will develop future roadway link volumes and turn volumes using proprietary software to estimate growth of each turn movement at each intersection.

Lane Configuration and Traffic Control: Y2 Consultants is experienced with road and highway design for every mode of travel and every class of road and intersection. Y2 will use the *Highway Capacity Software* (HCS) to develop link and intersection lane configurations and geometry to operate at a sufficient level of service “C” in the design year. Where HCS capacity analyses reveal an unsignalized intersection may not be adequate, Y2 will conduct a warrant study to estimate when signalization may become advisable.

Non-Motorized Plan Element: Non-motorized facilities are integral to this corridor. Y2 consultants uses the “*Complete Streets*” approach, integrating non-motorized facilities into the design. Our planning process evaluates six key non-motorized goals to assure that each street project optimizes the following objectives:

- *Safety – protecting pedestrians from road hazards.*
- *Security – providing an environment where pedestrians susceptibility to robberies, sexual harassment, or other crime is minimized.*
- *Directness – providing pedestrian paths that minimize the distance travelled to access public destinations.*
- *Legibility – providing information to aid the pedestrian in understanding the street environment.*
- *Comfort – considering the physical and weather-related aspects of the system to positively affect the level of comfort enjoyed by pedestrians, and;*
- *Access – providing a design that allows system users with mobility limitations to access the system.*

Non-motorized connectivity and ADA compliance are critical to modern road projects.

East Pershing Boulevard has few non-motorized connections, and gaps may lure pedestrians into a dead end. Current Greenway facilities are on the north side of East Pershing near Christensen and Whitney Roads, and along Taft/Polk Avenues. Narrower walkways are on the south side, from US-30 (Lincolnway) to east of Taft Avenue. Y2 Consultants will work with the community to identify locations for basic five-to-six-foot-wide ADA-compliant sidewalks, and locations where ten-foot-wide Greenway connections are needed. Y2 will develop a plan to meet non-motorized needs for existing and planned development along the entire corridor.

Drainage Evaluation: Y2 Consultants staff are very familiar with the area's history of flooding and has worked with FEMA on Letters of Map Revision (LOMR) along this drainage area.

The existing Dry Creek drain beneath East Pershing Blvd. consists of five parallel 6-foot by 12-foot box culverts. FEMA floodway mapping shows a rapid, ten-foot drop in the 100-year flood level immediately above and below the culverts, suggesting some difference in the analysis years.

Y2's approach to analysis of the Dry Creek crossing will combine our LiDAR expertise and city LiDAR database with our experience with the City of Cheyenne's Stormwater Management Model (SWMM) to evaluate these culverts. Based on current development patterns, Y2 will model drainage for full build out to estimate future runoff patterns and amounts, to determine if current capacity is adequate or if upgrades need to be made. If upgrades are needed, they will be sized to allow for sidewalks or Greenway along Pershing Blvd. Additionally, ceilings in the current culverts on East Pershing Blvd. are too low for use as a pedestrian underpass. If drainage improvements are indicated, another parallel culvert might be built tall enough for pedestrian use. In this way, this corridor plan may offer an opportunity to incorporate a Greenway underpass into the drainage design. Y2 will anticipate this possibility and evaluate the alternative if it arises.

Illustrative Alternatives: Before Open House #1, Y2 Consultants will use current best practices to develop illustrative design alternatives to address issues and objectives. Illustrative alternatives will be developed to a 10% (sketch) level of design sufficient to visualize the location and characteristics of the potential facility. Illustrative alternatives will include roadway connectivity, intersections, non-motorized alignments, drainage, and wayfinding and landscape design options.

Public Open House and Charrette #1: Y2 will conduct the first public involvement meeting after corridor research has been completed and illustrative alternatives developed. Y2 will present findings of fact and illustrative alternatives for citizen consideration and comment. This will be followed by a hands-on charrette where residents can focus on those corridor segments of most interest. We find that citizens appreciate being consulted prior to design, and engineering costs are reduced by allowing meaningful public involvement and input before beginning engineering design.

Advertising for Open House / Charrette #1 will be by press release, an event announcement on the project webpage and the MPO's Facebook page 3 weeks prior to the meeting, and variable message sign (VMS), if available. Open houses will include informational handouts and opinion surveys to solicit comment. Y2 will work with area road construction agencies to attempt to procure a VMS along the roadway to announce the meeting date, time, and location.

Y2 suggests holding open houses at the Saddle Ridge Elementary School Gymnasium. Y2 has prepared to schedule the meeting venue with Ms. Jessie Reeves, LCSD1 Facilities Scheduler.

Phase II: Preliminary Engineering: The preliminary engineering phase will use information from research, planning, and public comments to develop engineering to the 35% level. A fully informed and approved preferred alignment assures that engineering can proceed without excess costs of accomplishing multiple design iterations and rework.

MPO Review and Direction: After Open House #1, with research complete and public comments available regarding illustrative alternatives, the Steering Committee via Cheyenne MPO will provide direction to Y2 on the alternative to be carried forward to 35% engineering design. Y2 will then initiate engineering design of the selected alternative.

35% Road and Non-Motorized Design: With direction from Cheyenne MPO, Y2 will complete 35% design of roadway and non-motorized plan elements. This will consist of plan and profile sheets for the corridor, along with typical cross sections for road and non-motorized segments.

35% Drainage Design: Y2 Consultants will utilize the planned impervious pavement surface to estimate runoff from the road and design appropriate open or enclosed drainage along the corridor. This analysis and design will be integrated with design of the Dry Creek drainage.

Wayfinding Plan and Preliminary Landscape Design: Y2 Consultants will evaluate the proposed layout for pedestrian wayfinding needs and develop a plan for the locations and contents of City of Cheyenne standard wayfinding signage. Y2 will also evaluate corridor characteristics and recommend suitable locations and types of street furniture and landscape elements.

Preliminary Draft Report: Y2 Consultants will prepare a preliminary draft report per RFP specifications and provide ten copies of the Draft report for review by the Cheyenne MPO Project Manager and Steering Committee.

Open House #2: The preliminary engineering phase will conclude at public Open House #2, which will be advertised the same as Open House #1. Y2 Consultants will present the recommended design to the public, followed by an open house format with staffed displays. Y2 will provide display easels with visualizations of key plan elements. The PowerPoint presentation will be recorded on ZOOM and a link placed on the project webpage and the MPO's Facebook page. Attendees will be given informational handouts describing the project and all contact methods, as well as a survey soliciting their opinions on the proposed design.

Phase III: Final Deliverables Production

MPO Review and Direction: Cheyenne MPO will review comments and direct final edits to the DRAFT plan.

Presentations: Per RFP specifications, Y2 Consultants will provide up to ten presentations of the DRAFT and FINAL Plan to the following bodies: MPO Citizens' Advisory Committee (2), the MPO Technical Committee (2), MPO Policy Committee (1), City of Cheyenne Planning Commission (1), Laramie County Planning Commission (1), Laramie County Board of Commissioners (1), Cheyenne Public Service Committee (1), and Cheyenne City Council (1).

Final Deliverables: Y2 Consultants will prepare final deliverables as specified in the RFP. Y2 will provide ten (10) bound copies of the final plan document, together with electronic copies of all documents and materials produced during the study.

Project Close-Out: Standard project management methods include a close out meeting to address any final issues. This also offers an opportunity to consider "lessons learned" for use in future projects.

Exhibit B

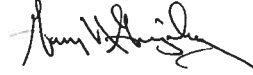
MPO Contract #: 187461

Tentative Schedule	East Pershing Boulevard Plan											
	2021						2022					
	June	July	August	September	October	November	December	January	February	March		
Notice to Proceed - June 29th, per RFP												
Kick-Off Meeting												
Research & Planning Phase												
MPO Review												
Open House #1												
Preliminary Engineering Phase												
MPO Review												
Open House #2												
Final Deliverables												
Agency Presentations, TBD												

• All dates stated herein are tentative estimates subject to change due to unforeseen conditions or as directed by the client.

Exhibit C

MPO Contract #187461

 Y2 CONSULTANTS y2consultants.com 307 733 2989	East Pershing Boulevard Plan	Project Total
TASK NAME	ESTIMATED SCHEDULE	LINE ITEM BUDGET
Notice to Proceed	Tuesday, June 29, 2021	TOTAL
Phase 0 - Pre-Project and Project Coordination (Duration of Project)		\$6,085
Kick Off Meeting	Week 1	
Regular Project Coordination	Monthly / As Needed	
Phase I - Research and Planning (13 Weeks)		\$40,835
Initiate Public Involvement	1 Week	
Review Existing Data and Documents	1 Week	
Utility Location	2 Weeks	
Traffic and Safety Review	1 Week	
Traffic Forecast and Capacity Analysis	2 Weeks	
Lane Configuration and Traffic Control	1 Week	
Non-Motorized Plan	1 Week	
Drainage Evaluation	2 Weeks	
Develop Illustrative Alternatives	1 Week	
MPO Review	2 Weeks	
Steering Committee Meeting	Week 13	
Public Open House and Charrette #1	Week 13	
Phase II - Preliminary Engineering (13 Weeks)		\$30,770
MPO Review and Direction	2 Weeks	
35% Road and Non-Motorized Design	4 Weeks	
35% Drainage Design	4 Weeks	
Wayfinding Plan	4 Weeks	
Preliminary Landscape Architectural Design	4 Weeks	
Preliminary DRAFT Report	2 Weeks	
MPO Review	2 Weeks	
Steering Committee Meeting	Week 36	
Public Open House #2	Week 36	
Phase 3 - Deliverables Production (10 Weeks + Presentations)		\$10,570
MPO Review	2 Weeks	
Presentations (10)	TBD	
Final Deliverables	10 Weeks	
Final Deliverables Specifications (Cont'd)	Cont'd	
Reimbursable Expenses		\$5,776
Reimbursable Expense	Printing	\$3,000
Reimbursable Expense	Mileage	\$1,568
Reimbursable Expense	Meals and Lodging	\$1,208
 Y2 CONSULTANTS y2consultants.com 307 733 2989	 	\$94,036

* Please refer to Exhibit A for a detailed description of the scope of work and services to be rendered during the various phases and subtasks.

* Billing will be tracked in accordance with the associated phase and / or expense.

* All dates stated herein are tentative estimates subject to change due to unforeseen conditions or as directed by the client. Please refer to Exhibit B for more details regarding the schedule.